

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

13. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

The motion for protective order is dropped from calendar as no moving papers were filed with the court.

14. S-CV-0055852 VILLACARA, ADAM v. TARAS, CURT

This tentative ruling is issued by the **Honorable Michael A. Jacques**. If oral argument is requested, it shall be heard on **May 21, 2026, at 8:30 a.m. in Department 40**.

Petitioner's Motion for Prevailing Party Attorney Fees

Petitioner moves for an award of attorney's fees in the amount of \$11,508.50 plus costs in the amount of \$643.78.

Code of Civil Procedure section 527.6, subdivision (s) provides "the prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any." (Code Civ. Proc., § 527.6, subd. (s).) In other words, whether to award attorney's fees to the prevailing party rests in the sound discretion of the trial court. (*Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802.)

Here, the court exercises its discretion and denies petitioner's request for attorney's fees. A review of the record reveals respondent filed a response that confirmed he would not contact petitioner or petitioner's family, tried to settle the matter but was rejected, and did not appear at any of the civil harassment order to show cause hearings. The court finds the uncontested nature of the matter does not warrant an imposition of attorney's fees and costs.

15. S-CV-0056156 WILT, ANGELA v. U-HAUL CO. OF CALIFORNIA

Defendant's Motion to Compel Arbitration and Stay Proceedings

Preliminary Matters

The court notes plaintiff's opposition exceeds the page limits imposed by California Rules of Court, Rule 3.1113, subdivision (d) by more than 10 pages. The court admonishes plaintiff that future pleadings must adhere to the page limits imposed by California Rules of Court, Rule 3.1113, subdivision (d).